

Proposed SACC. This document must be in the same form as that attached as Exhibit A to Ms. Nguyen's August 10, 2026 filing. Cross-Defendants shall respond to the newly filed Second Amended Cross-Complaint in the ordinary course.

[2] MOTION FOR LEAVE TO FILE REVISED SECOND AMENDED CROSS-COMPLAINT [Filed 7/31/26]

TENTATIVE RULING: Plaintiff's Motion for Leave to file Revised Second Amended Cross-Complaint is MOOT. In its concurrent ruling on Cross-Defendants' Demurrer and Motion to Strike Portions of First Amended Cross-Complaint, the Court detailed the procedural irregularity arising from the uncertainty of the operative cross-complaint. In an effort to resolve that irregularity, the Court has allowed Ms. Nguyen leave to file her fourteen-page proposed Second Amended Cross-Complaint, filed as Attachment A on August 10, 2026.

****at 9:30 a.m.****

Sofi Lending Corp. v. Lakesha Smith Williams

25CV001810

PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE
SUMMARY ADJUDICATION

TENTATIVE RULING: The motion is GRANTED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff SoFi Lending Corp. as Attorney-in-Fact for Santander Bank, N.A. ("Plaintiff"), moves, pursuant Code of Civil Procedure section 437c, for an order entering summary judgment in favor of Plaintiff and against Defendant Lakesha Smith Williams ("Defendant") or in the alternative for an order entering summary adjudication in favor of Plaintiff and against Defendant.

"A party may move for summary judgment in an action or proceeding if it is contended . . . that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).) "A plaintiff . . . has met that party's burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff . . . has met that burden, the burden shifts to the

defendant . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p); see also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*) [“a plaintiff bears the burden of persuasion that ‘each element of’ the ‘cause of action’ in question has been ‘proved,’ and hence that ‘there is no defense’ thereto”].)

Through the Complaint, Plaintiff asserts a single cause of action for breach of contract against Defendant. The Court finds that Plaintiff has satisfied its initial burden of producing facts sufficient to make a prima facie showing as to each element of the claim. (See Declaration of Plaintiff, ¶¶ 4-11, Exhs. A-C.)⁴ Defendant failed to file anything in opposition to the motion, and therefore fails to show a triable question of material fact requiring trial in the matter.

Based on the foregoing, the Motion is GRANTED.

The Court finds that Plaintiff has made a prima facie showing of damages in the amount prayed for through the Complaint (\$59,391.29). The Court further finds that items listed on Plaintiff’s Memorandum of Costs, filed May 7, 2026, appear proper on their face (\$1,025.46). (See *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267 [held: if the items listed in the memorandum of costs appear proper on their face, then the verified statement is *prima facie* evidence of their propriety].)

Based on the foregoing, the Court will sign the Proposed Judgment.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of James Michael Feeney

25PR000173

- [1] FIRST ACCOUNT AND REPORT OF CONSERVATORS OF PERSON AND ESTATE
- [2] REVIEW HEARING

TENTATIVE RULING: Both matters are CONTINUED to September 24, 2026, at 8:30 a.m. in Dept. B to allow the Conservators to file: (1) Notice of Conservatee’s Rights (Judicial Council form GC-341) mailed to relatives of the Conservatee within the second degree. The Clerk is directed to send notice to the parties.

⁴ The Court notes that Plaintiff’s Separate Statement on file is missing page 2, which appears to contain Plaintiff’s undisputed material facts, nos. 1-4. Because the record is brief, and because Plaintiff made the dispositive evidence obvious to the Court and opposing party through its Memorandum and Declaration, the Court elects to exercise its discretion to accept the less than perfect separate statement and consider the evidence outside of the filed-version of the Separate Statement. (See *San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A.* (2002) 102 Cal.App.4th 308, 316 [noting, in dicta, court’s discretion to consider evidence not referenced in moving party’s separate statement where the facts are relatively simple and the evidence was clearly called to the attention of court and counsel].)